



General Assembly

February Session, 2026

Raised Bill No. 422

LCO No. 2712



Referred to Committee on ENERGY AND TECHNOLOGY

Introduced by:
(ET)

AN ACT CONCERNING BIOMASS FACILITIES.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Subdivision (20) of subsection (a) of section 16-1 of the 2026
2 supplement to the general statutes is repealed and the following is
3 substituted in lieu thereof (*Effective October 1, 2026*):

4 (20) "Class I renewable energy source" means (A) electricity derived
5 from (i) solar power, (ii) wind power, (iii) a fuel cell, (iv) geothermal, (v)
6 anaerobic digestion or other biogas derived from biological sources, (vi)
7 thermal electric direct energy conversion from a certified Class I
8 renewable energy source, (vii) ocean thermal power, (viii) wave or tidal
9 power, (ix) low emission advanced renewable energy conversion
10 technologies, including, but not limited to, zero emission low grade heat
11 power generation systems based on organic oil free rankine, kalina or
12 other similar nonsteam cycles that use waste heat from an industrial or
13 commercial process that does not generate electricity, (x) (I) a run-of-
14 the-river hydropower facility that began operation after July 1, 2003, has
15 a generating capacity of not more than sixty megawatts, is not based on
16 a new dam or a dam identified by the Commissioner of Energy and

17 Environmental Protection as a candidate for removal, and meets
 18 applicable state and federal requirements, including state dam safety
 19 requirements and applicable site-specific standards for water quality
 20 and fish passage, or (II) a run-of-the-river hydropower facility that
 21 received a new license after January 1, 2018, under the Federal Energy
 22 Regulatory Commission rules pursuant to 18 CFR 16, as amended from
 23 time to time, is not based on a new dam or a dam identified by the
 24 Commissioner of Energy and Environmental Protection as a candidate
 25 for removal, and meets applicable state and federal requirements,
 26 including state dam safety requirements and applicable site-specific
 27 standards for water quality and fish passage, [(xi) a biomass facility,
 28 provided such facility has executed an agreement to provide energy to
 29 an electric distribution company prior to October 1, 2025, that (I) uses
 30 sustainable biomass fuel and has an average emission rate of equal to or
 31 less than .075 pounds of nitrogen oxides per million BTU of heat input
 32 for the previous calendar quarter, or (II) has a capacity of less than five
 33 hundred kilowatts that began construction before July 1, 2003, may be
 34 considered a Class I renewable energy source for the duration of such
 35 agreement,] or [(xii)] (xi) a nuclear power generating facility constructed
 36 on or after October 1, 2023, or (B) any electrical generation, including
 37 distributed generation, generated from a Class I renewable energy
 38 source, provided, on and after January 1, 2014, any megawatt hours of
 39 electricity from a renewable energy source described under this
 40 subparagraph that are claimed or counted by a load-serving entity,
 41 province or state toward compliance with renewable portfolio
 42 standards or renewable energy policy goals in another province or state,
 43 other than the state of Connecticut, shall not be eligible for compliance
 44 with the renewable portfolio standards established pursuant to section
 45 16-245a;

46 Sec. 2. Subsections (a) and (b) of section 16a-3u of the 2026
 47 supplement to the general statutes are repealed and the following is
 48 substituted in lieu thereof (*Effective October 1, 2026*):

49 (a) For the purposes of this section:

50 (1) "Existing biomass power purchase agreement" means a power
51 purchase agreement that: (A) (i) Was entered into by a biomass facility
52 that uses sustainable biomass fuel and has an average emission rate of
53 less than or equal to .075 pounds of nitrogen oxides per million BTU of
54 heat input for the previous calendar quarter, or energy derived from a
55 biomass facility with a capacity of less than five hundred kilowatts that
56 began construction before July 1, 2003, with an electric distribution
57 company in the state on or before June 5, 2013, or (ii) was executed in
58 accordance with a solicitation pursuant to section 16a-3f or 16a-3h; and
59 (B) was in effect as of January 1, 2024.

60 (2) "Eligible biomass facility" means a biomass facility that uses
61 sustainable biomass fuel and has an average emission rate of less than
62 or equal to .075 pounds of nitrogen oxides per million BTU of heat input
63 for the previous calendar quarter, or energy derived from a biomass
64 facility with a capacity of less than five hundred kilowatts that began
65 construction before July 1, 2003, and that has entered into one or more
66 existing biomass power purchase agreements.

67 (3) "Additional biomass power purchase agreement" means a
68 biomass power purchase agreement that is entered into by an eligible
69 biomass facility and an electric distribution company pursuant to
70 subdivision (b) of this section, for such facility's energy, [capacity and
71 environmental attributes, or any combination of such energy and
72 attributes.]

73 (4) "Electric distribution company" and "electric supplier" have the
74 same meanings as provided in section 16-1, as amended by this act.

75 (b) Not later than September 1, 2025, the Commissioner of Energy and
76 Environmental Protection shall initiate a proceeding to solicit proposals,
77 in consultation with the procurement manager identified in subsection
78 (l) of section 16-2, and the Office of Consumer Counsel, in one
79 solicitation or multiple solicitations, for energy [and environmental
80 attributes] from eligible biomass facilities. The Commissioner of Energy

81 and Environmental Protection may direct any electric distribution
82 company to enter into one or more additional biomass power purchase
83 agreements with any eligible biomass facility, provided any such
84 agreement considers the costs to operate such facility, is in the best
85 interest of ratepayers and supports the state's solid waste management
86 plan pursuant to section 22a-228. Any such additional power purchase
87 agreement shall begin upon the termination of the applicable existing
88 biomass power purchase agreements, and shall not exceed a period of
89 ten years.

This act shall take effect as follows and shall amend the following sections:		
Section 1	October 1, 2026	16-1(a)(20)
Sec. 2	October 1, 2026	16a-3u(a) and (b)

Statement of Purpose:

To redefine "class I renewable energy source" to exclude biomass facilities.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]